BOARD OF ZONING APPEALS
JULY 28, 2025
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Elliott Barrow, Cheryll Woods-Flowers, Joan Spier.
Absent: Giles Branch, Megan Stevens, Aaron Butner.
Staff: Chris Swalhah, David Pagilarini, Chris Lubert, Lynnette Lynes

Mr. Wood called the meeting to order at 6:05 pm.

A. Approval of Agenda

Ms. Spier moved for approval of the agenda with moving the following items to the beginning:

- ***Case V-22-25**, **3691 Locklear Lane, TMS# 614-01-00-133,** Request for relief from §156.705 to encroach within the required Tree Protection Zone of a 59'' Live Oak Tree for the construction of a new home.*
- ***Case V-24-25**, **930 Overview Court, TMS# 562-06-00-029,** Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 35'' Red Oak Tree and a 32'' Live Oak Tree for the construction of an accessory structure.*
- ***Case V-25-25**, **517 Pelzer Drive, TMS# 517-07-00-013,** Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 63'' Live Oak Tree, a 32'' Live Oak Tree, and a 29'' Laurel Oak Tree for the construction of an addition to an existing residence.*

Mr. Barrow seconded the motion. All in favor.

B. Approval of Minutes

Ms. Spier moved for approval of the minutes. Mr. Barrow seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

Mr. Daniel Brownstein, 1391 Downsbury Drive, thanked the Board for their service.

▶ Mr. Mike Tinkey, 208 Venning, welcomed Ms. Woods-Flowers and Ms. Spier as the newest members.

There being no further comments, Mr. Wood continued with the agenda. All correspondence was linked to the agenda.

E. Explanation of Procedures
F. Administration of Oath

▶ Mr. Wood explained the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-22-25**, **3691 Locklear Lane, TMS# 614-01-00-133,** Request for relief from §156.705 to encroach within the required Tree Protection Zone of a 59'' Live Oak Tree for the construction of a new home.
2. **Case V-24-25, 930 Overview Court, TMS# 562-06-00-029,** Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 35'' Red Oak Tree and a 32'' Live Oak Tree for the construction of an accessory structure.
3. **Case V-25-25, 517 Pelzer Drive, TMS# 517-07-00-013,** Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 63'' Live Oak Tree, a 32'' Live Oak Tree, and a 29'' Laurel Oak Tree for the construction of an addition to an existing residence.

▶ *Ms. Spier moved for approval to continue the following items for the applicant to work with staff:*

- *Case V-22-25, 3691 Locklear Lane, TMS# 614-01-00-133*
- *Case V-24-25, 930 Overview Court, TMS# 562-06-00-029*
- *Case V-25-25, 517 Pelzer Drive, TMS# 517-07-00-013.*

Mr. Barrow seconded the motion. All in favor.

4. **Case V-19-25**, **317 North Civitas Street, TMS# 562-02-00-172,** Request for relief from 156.424-1 to allow an encroachment into the 6-foot rear accessory structure setback for an existing unpermitted pergola.

▶ Mr. Swalhah reviewed staff comments with the Board.

- Ms. Jennifer, Blais, owner, stated that she has a letter from a neighbor and asked if this could be submitted.

- *Ms. Spier moved for approval to submit a letter from a neighbor. Ms. Woods-Flowers seconded the motion. Motion passed on a 3 to 1 vote with Ms. Woods-Flowers, Ms. Spier, and Mr. Wood in favor; Mr. Barrow opposed.*

- Ms. Blais submitted the letter for review and continued his review of the request for the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public.

- Ms. Blais asked for a deferral. There being no motion, the Board moved to deliberation.

- *Ms. Spier moved for denial based on the findings that it does not meet all of the required criteria to grant a variance, specifically that there are no extraordinary conditions and denial would not prohibit the utilization of the property. Mr. Barrow seconded the motion. All in favor.*

5. **Case V-20-25, 43 Vincent Drive, TMS# 535-13-00-020,** Request for relief from §156.039-1 to encroach into the 30-foot required rear setback for the construction of a new home.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Bruce Kiriloffe, contractor for the owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that site plan shows the ADU, pool, and main structure are encroaching into the setback, denial would not prohibit or unreasonably restrict the utilization of the property, alternative*

configurations have not been considered, and because all four criteria must be met to approve a variance, the variance should be denied. Ms. Spier seconded the motion. All in favor.

6. **Case V-21-25**, **672 Pawley Road, TMS# 517-08-00-105,** Request for relief from §156.039-1 to allow an encroachment into the required 10-foot side setback for the construction of an addition to an existing home.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Josh Good, representative for the owner, reviewed the request with the Board. He asked if he could submit letters of support from neighbors,

- *Ms. Woods-Flowers moved for approval to submit letter of support from the neighbors. Ms. Spier seconded the motion. Motion passed on a 3 to 1 vote with Ms. Woods-Flowers, Ms. Spier, and Mr. Wood in favor; Mr. Barrow opposed.*

Mr. Good submitted the letters to the Board for review.

- Mr. Wood closed public comment.

- *Mr. Wood moved for denial based on the findings that the required criteria has not been met and by the applicant's admission, alternatives have not been explored. Ms. Spier seconded the motion. All in favor.*

7. **Case V-23-25, 448 Church Street, TMS# 532-01-00-091,** Request for relief from §156.039-1 for an encroachment into the required 25-foot front setback for the placement of a propane tank.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Joel Adrian, architect, reviewed the request with the Board and asked that the application be withdrawn.

- *Ms. Spier moved for approval of the withdrawal as requested by the applicant. Ms. Woods-Flowers seconded the motion. All in favor.*

8. **Case V-26-25, 1449 Scott's Creek Circle, TMS# 560-09-00-241,** Request for relief from §156.424-1 to allow a 0.9-foot encroachment into the 6-foot side accessory structure setback for a cabana currently under construction.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Ed Guidry, contractor, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Wood moved for approval based on the findings that there was an error by Town staff and the encroachment should have been caught during the various inspections so that remediation could have been completed with minimal hardship, the encroachment is minimal and correction would be a substantial financial hardship. Ms. Woods-Flowers seconded the motion. All in favor.*

9. **Case V-27-25**, **1015 Scottland Drive, TMS# 535-14-00-022,** Request for relief from §156.705 to encroach within the required Tree Protection Zone of a 36'' Live Oak Tree for the construction of an addition to an existing residence.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Tripp Godwin, builder, and Mr. Andrew Giordano, arborist, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

Mr. Wood asked if a deferral would be appropriate so the applicant could work with staff to determine if remedial measures could be determined without a variance needed. Mr. Godwin and Mr. Giordano asked for a deferral.

- *Ms. Woods-Flowers moved for deferral to the next meeting for the applicant to work with staff on possible remedial measures. Ms. Spier seconded the motion. All in favor.*

10. **Case V-18-25**, **1013 Plantation Court, TMS# 562-02-00-172,** Request for relief from §156.424-1 to allow a 4' 6'' encroachment into the side accessory setback and a 4' encroachment into the rear accessory setback. The ordinance requires a 6' setback from the rear and side property lines for accessory buildings. Related Correspondence

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Lauren Unger, owner, reviewed the request with the Board and asked that the new PowerPoint be submitted for review.

- *Ms. Woods-Flowers moved for approval of the new PowerPoint presentation. Mr. Wood seconded the motion. Motion passed on a 3 to 1 vote with Ms. Woods-Flowers, Ms. Spier, and Mr. Wood in favor, Mr. Barrow opposed.*

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for approval based on the findings that staff has presented evidence showing extraordinary conditions, all other properties in the vicinity have garages within the accessory setback, using a different body of law to grant approval, property is unique and utilization would be unreasonably restricted by not being able to have a garage located in the same location of the other homes in the neighborhood, and would not be a detriment as the property would then be in line with the character of the neighborhood. Ms. Spier seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 7:55 pm.

Submitted by,
L. Lynes
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